

25NWCV01642 25NWCV01642

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Case Number: 25NWCV01642 Hearing Date: July 28, 2026 Dept: R

#18

LEIVA, ET AL.

v. LNW APARTMENTS, LLC., ET AL.

CASE NO.: 25NWCV01642

HEARING: Tuesday, July
28, 2026, at 9:30 AM

Defendant LNW APARTMENTS, LLC's Motion to Compel Defendant Compel
Plaintiffs Further Responses to Request for Production of Documents, Set One,
Request No. 22 is GRANTED.

Plaintiff to give notice.

BACKGROUND

On May 6, 2025, Plaintiffs AILYN LEIVA, an individual and
Guardian ad Litem for MARIELA SANCHEZ LEIVA; ADRIANNA SANCHEZ; ANTHONY SANCHEZ;
MARIELA SANCHEZ LEIVA, a minor child by and through her Guardian ad Litem,
AILYN LEIVA; CRISTIAN IBARRA; ACE IBARRA; ZOLIA IBARRA; KERI BLANCO; DAMIAN
BLANCO; and NADIA MORALES ("Plaintiffs") filed this real property action
against Defendants LNW APARTMENTS, LLC ("Defendant"); YUNGLIN JOHN WEN;
CHUNG-HSIUNG WEN; and DOES 1 through 25.

On February 19, 2026, Plaintiffs filed the operative First
Amended Complaint ("FAC").

Plaintiffs' FAC alleges the following causes of action:

- (1) Breach of Implied Warranty of Habitability;
- (2) Tortious Breach of Implied Warranty of Habitability;
- (3) Negligence;
- (4) Private Nuisance; and
- (5) Violation of Civ. Code §1942.4

On June 18, 2026, Defendant filed the instant motion to Compel Plaintiffs' Further Responses to Request for Production of Documents, Set One, No. 22.

MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS

With respect to requests for production of documents, there are only three appropriate ways to respond: (1) a statement that the party will comply with the request, (2) a statement of inability to comply, or (3) an objection. (CCP §2031.210.)

Request 22 seeks:

"For the period from January 1, 2021, to the present, produce documents sufficient to identify each healthcare provider, date of service, general category of treatment, amount billed, amount paid, and patient-responsibility amount for any medical or mental-health treatment that plaintiffs contend was caused by, contributed to, or aggravated by the alleged mold exposure, water intrusion, unsanitary conditions, or other alleged habitability defects at the subject property." (Leong Decl., Ex. I.)[1]

Defendant further specified: "this request does not include plaintiffs' health insurance policies, premium details, enrollment records, benefit election forms, applications, dependent or family coverage data, Social Security numbers, tax information, unrelated financial records, or unrelated medical and mental health histories. If plaintiffs believe it necessary, they

may redact any unrelated diagnoses, treatments, providers, dependent or family details, full policy numbers, birth dates, addresses, and other personal identifiers that are not essential for identifying the provider, date of service, general treatment category, or claimed medical expenses." (Id.)

Plaintiffs asserted the following response to each request:

"Plaintiffs object in that this request is overboard, overly-intrusive, and burdensome. The request is not reasonably calculated to lead to the discovery of admissible evidence and calls for information which violates Responding Party's right to privacy. Further, this request seeks information in violation of the collateral source rule."

Plaintiffs' boilerplate objections are unfounded. Indeed, the request is limited in time and in scope. Defendant only seeks documents from the past five years and limits the request to medical or mental-health treatment Plaintiffs contend was necessary due to Defendant's alleged negligence.

Privacy

The right of privacy protects a person's work history and personnel records. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1427.) However, third party's right of privacy is not absolute and may be abridged when there is a compelling and opposing state interest. (Board of Trustees, Etc. v. Superior Court (1981) 119 Cal.App.3d 516, 525; see also Binder v. Superior Court (1987) 196 Cal.App.3d 893, 900.) One such competitive state interest is facilitating in the ascertainment of truth pertaining to legal proceedings. (Binder, supra, 196 Cal.App.3d at 900.)

By filing a personal injury action, plaintiffs place in issue their past and present physical and/or mental conditions related to the injury sued upon. All medical and/or psychological records relating to the claimed injuries are thus discoverable. Evidence Code §§ 996, 1016; Britt v. Superior Court (1978) 20 Cal.3d 844, 862–864. Normally, information about medical conditions entirely different from the injury sued upon is beyond the scope of discovery. However, medical records pertaining to an unrelated condition are discoverable on a showing of "good cause" if the condition is relevant to the issue of proximate causation. (Evidence Code §999; Slagle v. Superior Court (1989) 211 Cal.App.3d

1309, 1314–1315 [good cause shown by info that plaintiff was blind 6 months before accident].)¿

Here, the request is limited to medical or mental-health treatment Plaintiffs contend was necessary due to Defendant's negligence. In other words, it relates to Plaintiffs' claimed injuries and thus is discoverable.

Collateral Source Rule

Finally, Plaintiffs contend the collateral source rule bars production. Under the traditional collateral source rule, a jury, in calculating a plaintiff's damages in a tort action, does not take into consideration benefits – such as medical insurance or disability payments – which the plaintiff has received from sources other than the defendant – i.e., “collateral sources” – to cover losses resulting from the injury. (Fein v. Permanente Medical Group (1985) 38 Cal.3d 137, 164.)

However, admissibility is not the test for discovery. (See CCP §2017.010) (“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence...”). Plaintiffs confuse admissibility with relevance.

The information sought could lead to the discovery of other injuries or allow Defendant to verify Plaintiffs' medical payments.

Conclusion

Finding Plaintiffs' response insufficient, Defendant's Motion is GRANTED.

Plaintiffs, each of them, shall serve verified, code-compliant responses to Defendant's Request for Production of Documents, Set One, No. 22, without objection within 30 days of the Court's issuance of this order.

To the extent any document is protected by privilege,
Plaintiffs may produce a privilege log.

[1]

The Court references the narrowed-down Request No. 22 offered by Defendant during the parties June 12, 2026, meet and confer correspondence.